

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 10

Honorable Jeffrey B. El-Hajj

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: July 28, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, you must call (408) 808-6856 before 4:00 P.M.

You must also contact the other side before 4:00 P.M. to inform them that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

The courthouse is open: The court **strongly prefers in-person** appearances for all contested law-and-motion matters. For all other hearings, parties may appear either in person or by video. Telephone-only appearances are no longer permitted for civil hearings unless the court grants an exception. (Civil Local Rule 5.A.)

Scheduling motion hearings: Please visit <https://reservations.sccscourt.org> or call 408-882-2430 between 8:30 a.m. and 3:00 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. Motion papers must be filed no more than five court days after reserving the hearing date, or the date will be released to other cases.

Remote appearances: Department 10 uses Unicorn Digital Courtroom (UDC) for remote hearings. **This system requires advance registration with a case number and hearing date.** Please visit this link if you need to appear remotely, and then scroll to the link for Department 10:
<https://santaclara.courts.ca.gov/online-services/remote-hearings>.

Recording is prohibited: Most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

Court reporters: Unfortunately, the court is not able to provide official court reporters for civil proceedings. If any party wishes to pay for their own court reporter, the appropriate form must be submitted: <https://santaclara.courts.ca.gov/general-information/court-reporter-information>.

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9:00 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	25CV475988	Emory Street Partners, LLC v. Dana Hendricks et al.	Click LINE 1 or scroll down for ruling.
Line 2	25CV475988	Emory Street Partners, LLC v. Dana Hendricks et al.	Click LINE 1 or scroll down for ruling.
Line 4	25CV475988	Emory Street Partners, LLC v. Dana Hendricks et al.	Click LINE 1 or scroll down for ruling.
Line 5	25CV475988	Emory Street Partners, LLC v. Dana Hendricks et al.	Click LINE 1 or scroll down for ruling.
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Line 8	25CV475988	Emory Street Partners, LLC v. Dana Hendricks et al.	Click LINE 1 or scroll down for ruling.
Line 9	26CV496685	Chien-Ju Lo et al. v. Ping Chen et al.	Click LINE 2 or scroll down for ruling.

Calendar Lines 1 through 8

Case Name: Emory Street Partners, LLC v. Dana Hendricks et al.

Case No.: 25CV475988

At issue are seven discovery motions filed by plaintiff Emory Street Partners, LLC. Four seek discovery from defendant Vermont Street Partners, LLC. Three seek discovery from defendant Dana Hendricks. The motions were filed in February and early March 2026. They were specially set by order on ex parte application for this court's dark week so that they could be heard together. Notice is proper. No timely opposition was filed as to any of the motions. The court's May 2026 order on a different discovery motion admonished the parties that it "will not consider filings that do not comply with applicable Code of Civil Procedure filing deadlines. (See Code Civ. Proc., §§ 1005 [governing most motions]; 437c [governing motions for summary judgment]"; unspecified statutory references are to this Code.)

Preliminary Procedural Issues

Court defaults were entered against defendants Dana Hendricks and Vermont Street Partners, LLC, on July 1, 2026. The first amended complaint was filed on January 29, 2026. Proofs of service of summons were filed for all four defendants named in that amended complaint in February 2026. Defendants Dana Hendricks and Vermont Street Partners, LLC, did not answer the amended complaint. Those defendants cannot take action in this case until those defaults are set aside (either by stipulation of the parties or by order of the court after a motion for relief from default). The other two named defendants—Margaret Hendricks and Grand Lake Partners, LLC—have motions to quash service of summons that will be heard on October 6, 2026. The court reminds the parties, as it did in the order on the ex parte to advance the discovery motions, that a corporation cannot be self-represented. (*Merco Constr. Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 729 (*Merco*) [" 'A corporation cannot represent itself in court, either in propria persona or through an officer or agent who is not an attorney.' "].)

The court's order granting plaintiff's ex parte application to advance the hearings on the seven discovery motions ordered the parties to meet and confer "in person, by telephone, or by videoconference," to informally resolve the discovery disputes. The court indicated the parties' good faith participation (or lack thereof) in meet and confer efforts is a factor the court would consider in determining whether to grant discovery sanctions. Plaintiff's counsel filed a supplemental declaration in July 2026 summarizing meet and confer efforts. Counsel indicates defendant Dana Hendricks has sent certain discovery responses via email (that plaintiff argues are incomplete), but has consistently failed to communicate directly over the phone (by either missing scheduled calls or conditioning a call on it being recorded). (Harvey dec., filed 7/15/26, ¶¶ 6-13.) The court finds defendant Dana Hendricks has not made a good faith effort to meet and confer, despite plaintiff's good faith efforts to facilitate it. The court also observes that defendant Dana Hendricks failed to oppose the instant motions or provide the court with any information about efforts to respond to the discovery, despite having over four months to respond after the order advancing these hearings. At the same time, the court seriously questions plaintiff's apparent decision not to depose defendant Dana Hendricks because she arrived two minutes late to a scheduled deposition. (Harvey dec., ¶ 17.) Regardless of whether defendant had produced all required documents, plaintiff provides no adequate explanation for why plaintiff did not at least begin defendant's deposition on that date.

Defendant Dana Hendricks filed a “Request for Extension of Time to Pay Monetary Sanctions Until the Close of Escrow” on July 20, 2026, seeking an extension to pay discovery sanctions related to earlier motions decided against her. Defendant cannot obtain any relief from this court while she is in default. And even if default is eventually set aside, any request for relief must come through noticed motion. The court will take no action on the request.

Unopposed Discovery Motions Related to Defendant Dana Hendricks

Motion to Deem Requests for Admission Admitted

Plaintiff’s motion for order deeming admitted requests for admission, set one (§ 2033.280), or in the alternative, for an order compelling further responses (§ 2033.290). Defendant Dana Hendricks initial response was unsigned, unverified, and answered in groups instead of separately. She sent updated responses after the motion was filed, which were signed and verified but still answered in groups instead of separately. “The party to whom requests for admission have been directed shall respond in writing under oath separately to each request.” (§ 2033.210, subd. (a).) The motion to compel further responses is GRANTED. Defendant Dana Hendricks is ordered to provide verified, code-compliant responses to the requests for admission no later than August 28, 2026. The request for sanctions is GRANTED IN PART. Defendant Dana Hendricks is ordered to pay plaintiff sanctions in the amount of \$360 (\$60 filing fee plus one hour of attorney fees at \$300/hour) no later than October 1, 2026.

Motion to Compel Responses to Form Interrogatories, Set One

Plaintiff’s motion to compel responses to form interrogatories, set one. (§ 2030.290.) Defendant Dana Hendricks did not initially respond to the discovery request. Plaintiff’s supplemental declaration states that defendant “emailed incomplete responses” to the form interrogatories in April 2026 after the motion to compel was filed. (Harvey dec., ¶ 5.) That declaration indicates the responses “omitted numerous Form Interrogatories.” (*Ibid.*) Neither party submitted those responses, leaving the court with an incomplete record. Based on the available record, the motion is GRANTED. Defendant Dana Hendricks is ordered to provide verified, code-compliant responses to the form interrogatories no later than August 28, 2026. The request for sanctions is GRANTED IN PART. Defendant Dana Hendricks is ordered to pay plaintiff sanctions in the amount of \$660 (\$60 filing fee plus two hours of attorney fees at \$300/hour) no later than October 1, 2026.

Motion to Compel Responses to Special Interrogatories, Set One

Plaintiff’s motion to compel responses to special interrogatories, set one. (§ 2030.290.) Defendant Dana Hendricks did not initially respond to the discovery request. Plaintiff’s supplemental declaration states that defendant “emailed incomplete responses” to the special interrogatories in April 2026 after the motion to compel was filed. (Harvey dec., ¶ 5.) That declaration indicates the responses were “in ‘group’ fashion (e.g., ’11-20’) without the required separate responses or the production of referenced documents.” (*Ibid.*) Neither party submitted those responses, leaving the court with an incomplete record. “The party to whom interrogatories have been propounded shall respond in writing under oath separately to each interrogatory.” (§ 2030.210, subd. (a).) Based on the available record, the motion is GRANTED. Defendant Dana Hendricks is ordered to provide verified, code-compliant responses to the special interrogatories no later than August 28, 2026. The request for

sanctions is GRANTED IN PART. Defendant Dana Hendricks is ordered to pay plaintiff sanctions in the amount of \$660 (\$60 filing fee plus two hours of attorney fees at \$300/hour) no later than October 1, 2026.

Unopposed Discovery Motions Related to Defendant Vermont Street Partners, LLC

Motion to Deem Requests for Admission Admitted

Plaintiff's motion for order deeming admitted requests for admission, set one (§ 2033.280), or in the alternative, for an order compelling further responses (§ 2033.290). Defendant Vermont Street Partners, LLC's response was unsigned, unverified, answered in groups instead of separately, and not prepared by an attorney. A corporation cannot be self-represented. (*Merco, supra*, 21 Cal.3d at p. 729.) Defendant Dana Hendricks sent updated responses after the motion was filed, which were signed and verified but still answered in groups instead of separately. And Ms. Hendricks is not an attorney, meaning she cannot represent the corporate defendant. The motion to compel further responses is GRANTED. Defendant Vermont Street Partners, LLC is ordered to provide verified, code-compliant responses to the requests for admission no later than August 28, 2026. The request for sanctions is GRANTED IN PART. Defendant Vermont Street Partners, LLC is ordered to pay plaintiff sanctions in the amount of \$360 (\$60 filing fee plus one hour of attorney fees at \$300/hour) no later than October 1, 2026.

Motion to Compel Responses to Requests for Production, Set One

Plaintiff's motion to compel initial responses to requests for production, set one. (§ 2031.300, subd. (b).) Defendant Vermont Street Partners, LLC did not initially respond to the discovery request. Plaintiff's supplemental declaration indicates defendant Dana Hendricks "emailed 20 attachments in response to [plaintiff's] February 26 meet and confer correspondence" after the motion to compel was filed. (Harvey dec., ¶ 3.) It is unclear what those attachments included. And Ms. Hendricks is not an attorney, meaning she cannot represent the corporate defendant. Based on the available record, the motion is GRANTED. Defendant Vermont Street Partners, LLC is ordered to provide verified, code-compliant responses to the request for production no later than August 28, 2026. The request for sanctions is GRANTED IN PART. Defendant Vermont Street Partners, LLC is ordered to pay plaintiff sanctions in the amount of \$660 (\$60 filing fee plus two hours of attorney fees at \$300/hour) no later than October 1, 2026.

Motion to Compel Responses to Form Interrogatories, Set One

Plaintiff's motion to compel responses to form interrogatories, set one. (§ 2030.290.) Defendant Vermont Street Partners, LLC did not initially respond to the discovery request. Plaintiff's supplemental declaration states that defendant Dana Hendricks "emailed incomplete responses" to the form interrogatories in April 2026 after the motion to compel was filed. (Harvey dec., ¶ 5.) That declaration indicates the responses "omitted numerous Form Interrogatories." (*Ibid.*) And Ms. Hendricks is not an attorney, meaning she cannot represent the corporate defendant. Neither party submitted those responses, leaving the court with an incomplete record. Based on the available record, the motion is GRANTED. Defendant Vermont Street Partners, LLC is ordered to provide verified, code-compliant responses to the form interrogatories no later than August 28, 2026. The request for sanctions is GRANTED IN

PART. Defendant Vermont Street Partners, LLC is ordered to pay plaintiff sanctions in the amount of \$660 (\$60 filing fee plus two hours of attorney fees at \$300/hour) no later than October 1, 2026.

Motion to Compel Responses to Special Interrogatories, Set One

Plaintiff's motion to compel responses to special interrogatories, set one. (§ 2030.290.) Defendant Vermont Street Partners, LLC did not initially respond to the discovery request. Plaintiff's supplemental declaration states that defendant "emailed incomplete responses" to the special interrogatories in April 2026 after the motion to compel was filed. (Harvey dec., ¶ 5.) That declaration indicates the responses were "in 'group' fashion (e.g., '11-20') without the required separate responses or the production of referenced documents." (*Ibid.*) And Ms. Hendricks is not an attorney, meaning she cannot represent the corporate defendant. Neither party submitted those responses, leaving the court with an incomplete record. "The party to whom interrogatories have been propounded shall respond in writing under oath separately to each interrogatory." (§ 2030.210, subd. (a).) Based on the available record, the motion is GRANTED. Defendant Vermont Street Partners, LLC is ordered to provide verified, code-compliant responses to the special interrogatories no later than August 28, 2026. The request for sanctions is GRANTED IN PART. Defendant Vermont Street Partners, LLC is ordered to pay plaintiff sanctions in the amount of \$660 (\$60 filing fee plus two hours of attorney fees at \$300/hour) no later than October 1, 2026.

Conclusion

The seven motions to compel are GRANTED, as described in this order. Defendant Dana Hendricks is ordered to pay plaintiff a total of \$1,680 in sanctions no later than October 1, 2026. Defendant Vermont Street Partners, LLC is ordered to pay plaintiff a total of \$2,340 in sanctions no later than October 1, 2026. These sanctions are in addition to any sanctions imposed in previous orders.

The court will set a trial date at the hearing on July 28, 2026. The trial will be a court trial unless a party submits the nonrefundable \$150 jury deposit before the July 28, 2026, hearing.

The court will prepare the order.

- 00000 -

Calendar Line 2**Case Name:** Chien-Ju Lo et al. v. Ping Chen et al.**Case No.:** 26CV496685

Plaintiffs Chien-Ju Lo and Silvius One Inc.’s motion for a preliminary injunction against defendants Dao Capital Inc. and Ping Ping Chen. Plaintiffs sued defendants (and Doe defendants) in June 2026. The complaint alleges nine causes of action: breach of fiduciary duty (Corp. Code, § 17704.09); breach of duty to allow inspection of financial books (Corp. Code, § 17704.10); conversion; receipt of stolen property; unjust enrichment; accounting; removal of manager (Corp. Code, § 17704.07); dissociation (Corp. Code, § 17706.02); and dissolution (Corp. Code, § 17707.03). Most causes of action are alleged against all defendants. Conversion is alleged against only Ping Ping Chen. And dissociation is alleged against only Dao Capital Inc. The dispute regards management of nominal defendant Organica OMJ LLC, which is a California limited liability company. Organica owns and operates three businesses: two called Rabbit Rabbit Cream and one called Rabbit Rabbit Tea. (Complaint, ¶¶ 9-13.) Plaintiffs allege that defendants have mismanaged the businesses.

Plaintiffs moved ex parte for a temporary restraining order in June 2026, which the court granted in part. The temporary restraining orders were as follows: (1) The parties shall preserve all Organica OMJ LLC’s (“Organica”) books, records, electronically stored information, bank records, payroll records, POS records, accounting records, tax materials, lease files, landlord communications, broker communications, and other business records; (2) Defendants are restrained from selling, transferring, encumbering, marketing, or agreeing to sell or transfer the Stanford Shopping Center location or any other Organica business asset outside the ordinary course of business; and (3) Defendants are restrained from making any withdrawals, transfers, credit card payments, or disbursements from Organica accounts absent plaintiffs’ written consent or further order of the Court.

The court also issued an order to show cause why a preliminary injunction should not issue: (1) Requiring the immediate preservation of all Organica OMJ LLC’s (“Organica”) books, records, electronically stored information, bank records, payroll records, POS records, accounting records, tax materials, lease files, landlord communications, broker communications, and other business records; (2) Requiring defendants to provide plaintiffs and their designated representatives with complete administrative access to Organica’s bank accounts, payment processing accounts, payroll systems, POS systems, rental portals, accounting platforms, and related business systems, including all credentials, access settings, and transaction histories; (3) Restraining defendants from selling, transferring, encumbering, marketing, or agreeing to sell or transfer the Stanford Shopping Center location or any other Organica business asset outside the ordinary course of business; (4) Restraining defendants from making any withdrawals, transfers, credit card payments, or disbursements from Organica accounts absent Plaintiffs’ written consent or further order of the Court; and (5) Suspending defendants from exercising any managerial control over Organica, including control over company bank accounts and business systems, and vesting such managerial control in: (a) Plaintiff Chien-Ju Lo, or her designated representatives; or (b) a neutral third-party agreed upon by plaintiffs and defendants.

Legal Standard for Preliminary Injunctions

“In deciding whether to issue a preliminary injunction, a court must weigh two ‘interrelated’ factors: (1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction.” (*Butt v. State of California* (1992) 4 Cal.4th 668, 677-678.) “The trial court’s determination must be guided by a ‘mix’ of the potential-merit and interim-harm factors; the greater the plaintiff’s showing on one, the less must be shown on the other to support an injunction.” (*Ibid.*) “The granting of a mandatory injunction pending trial is not permitted except in extreme cases where the right thereto is clearly established.” (*Teachers Insurance & Annuity Ass’n v. Furlotti* (1999) 70 Cal.App.4th 1487, 1493 (*Furlotti*).)

Discussion

It is undisputed that defendant Ping Ping Chen manages the day-to-day operations at Organica’s three businesses. (Complaint, ¶ 17.) It is also undisputed that plaintiffs and defendants obtained equal 50 percent ownership interests in Organica in 2021 when a third member sold her shares. (Complaint, ¶ 13; Chien-Ju Lo dec., 6/16/26, exh. A.) There is a dispute about the extent of the parties’ *current* ownership percentages, with plaintiffs alleging they now own more than 50 percent of Organica due to plaintiffs’ extra payments toward rent obligations. (Complaint, ¶ 30.)

Plaintiffs argue defendant Ping Ping Chen has mismanaged Organica’s businesses. They point to various irregularities, including: point of sale machine charges for companies even though Chen told plaintiffs Organica was no longer using those companies; an invoice showing charges to 16 employees when it appeared Organica had only 11 employees; payments to a credit card (ending in -1746) that had not been identified as a business credit card; and failures to pay rent that resulted in threats of eviction (Chien-Ju Lo dec., exh. M, p. 4) and the decision of one landlord to decide not to renew Organica’s lease once it expires in July 2027 (Chien-Ju Lo dec., exh. DD). Plaintiffs also argue that defendants have failed to provide full access to all of Organica’s financial data. Defendants argue plaintiffs’ contentions are not based on evidence of misconduct and instead merely indicate that Organica’s businesses are not profitable despite Chen’s best efforts.

Probability of Prevailing

Based on the foregoing, the court finds plaintiffs have demonstrated a probability of prevailing on their cause of action for failing to provide access to Organica’s financial records. (Corp. Code, § 17704.10; *Perry v. Stuart* (2025) 111 Cal.App.5th 472, 496 [a member “may enforce its rights [under Corp. Code, § 17704.10] by bringing an action”].) The evidence supports a finding that defendants have not shared all required financial information with plaintiffs. Although defendants apparently produced some financial information in May 2026, that production was incomplete.

Plaintiffs have also demonstrated at least a slight probability of prevailing on their accounting cause of action. “ ‘An accounting is an equitable proceeding which is proper where there is an unliquidated and unascertained amount owing that cannot be determined without an examination of the debits and credits on the books to determine what is due and owing.’ ” (*Green Valley Landowners Assn. v. City of Vallejo* (2015) 241 Cal.App.4th 425, 442.) An accounting action requires a fiduciary relationship and some “ ‘underlying misconduct on the part of the defendant.’ ” (*Ibid.*) The parties here have a fiduciary relationship. And the

evidence supports at least a slight probability that plaintiffs can demonstrate misconduct by Chen in her management of Organica. Contrary to defendants' argument that any sum is easily ascertained, it is apparent even from the limited evidence available that determining the parties' rights and obligations will require substantial investigation into several accounts (including multiple point of sale companies and multiple payroll companies).

Plaintiffs have not demonstrated a probability of prevailing on their other causes of action. Their suspicions, if accurate, could support liability on the part of defendants. But the evidentiary record is too unsettled for the court to find a probability of prevailing.

Interim Harm

Issuing a limited, prohibitive preliminary injunction similar to the temporary restraining order will not seriously harm either side in this case. Plaintiffs would suffer harm without injunctive relief because delay in gaining access to Organica's current and historical financial information would prevent them from preparing for this lawsuit while also helping stabilize Organica.

The mandatory injunctive relief plaintiffs request—removing Chen from managerial control and vesting that control in plaintiffs—is not supported by this record. This is not one of the “extreme cases where the right [to injunctive relief] is clearly established.” (*Furlotti, supra*, 70 Cal.App.4th at p. 1493.) It is also possible that *all* parties could be harmed by the court granting such relief, given that there is no evidence related to plaintiffs' ability to manage the day-to-day operations of three businesses. Neither party addressed the section of the order to show cause about vesting managerial control in a neutral third party. The court also notes that plaintiffs' motion is for a preliminary injunction and not for a receivership. The court takes no position on whether a receivership would be appropriate in this case.

Conclusion

The court GRANTS IN PART plaintiff's motion for preliminary injunction as follows: (1) the parties shall preserve all Organica OMJ LLC's (Organica) books, records, electronically stored information, bank records, payroll records, POS records, accounting records, tax materials, lease files, landlord communications, broker communications, and other business records; (2) defendants must allow plaintiffs to inspect and copy Organica's books, records, electronically stored information, bank records, payroll records, POS records, accounting records, tax materials, lease files, landlord communications, broker communications, and other business records; (3) defendants are restrained from selling, transferring, encumbering, or agreeing to sell or transfer the Stanford Shopping Center location or any other material business asset without the written consent of plaintiffs; and (4) defendants are restrained from making any withdrawals, transfers, credit card payments, or disbursements from Organica accounts in an amount over \$20,000 without plaintiffs' written consent or further order of the Court. The preliminary injunction will remain in effect until entry of judgment or further order of this court. Plaintiffs shall deposit a bond of \$20,000 within 30 days of this order. (Code Civ. Proc., § 529.)

The court will prepare the order.

